



CHAPTER xvi.

An Act to authorise the corporation of Chesterfield to
construct and work additional tramways to execute
certain street works and improvements to extend their
area for the supply of electricity to make further pro-
vision for the improvement local government and
health of the borough of Chesterfield and for other
purposes. A.D. 1914.
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[8th July 1914.]

WHEREAS the borough of Chesterfield in the county of Derby
(in this Act called "the borough") is a municipal borough
under the government of the mayor aldermen and burgesses
thereof (in this Act called "the Corporation") And whereas
the Corporation acting by the council are the local authority
for the borough:

And whereas in pursuance of powers conferred upon them
by the Chesterfield Corporation Tramways and Improvements
Act 1904 the Corporation have constructed and are working
a system of tramways within and beyond the borough and it is
expedient to empower them to construct and work the additional
tramways referred to in this Act and to confer further powers
upon them in connection with their tramway undertaking:

And whereas it is expedient to empower the Corporation
to execute the street improvements and works and to make the
new streets in this Act respectively described and in connection
therewith to make certain diversions and to acquire lands for
these and other purposes:

And whereas under the provisions of the Chesterfield
(Corporation) Electric Lighting Order 1894 as confirmed by the
Electric Lighting Orders Confirmation (No. 1) Act 1894 the
Chesterfield Corporation Tramways and Improvements Act 1904

A.D. 1914. — and the Chesterfield (Extension) Order 1910 as confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1910 the Corporation are the owners of an electricity undertaking whereby the borough and certain districts in the neighbourhood thereof are supplied with electricity and it is expedient that the area of supply of the Corporation for such purposes should be extended and other and better powers be conferred upon the Corporation as in this Act provided:

And whereas the Corporation are the owners of markets cattle markets and the Market Hall and the markets undertaking and it is expedient that the Corporation should be enabled to enlarge their existing market and to acquire lands for the purpose and that further and better provision should be made with regard to the markets undertaking:

And whereas it is expedient that better provision should be made with reference to streets buildings sewers and drains within the borough and that the powers of the Corporation in relation to the health local government and improvement of the borough should be enlarged as by this Act provided:

And whereas it is expedient to empower the Corporation to extend and improve their public buildings and to confer further powers upon them with respect to parks and public recreation grounds:

And whereas it is expedient that the Corporation should be empowered to borrow money for the purposes of this Act:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

For the construction of the tramways by this Act authorised - - - - -	£ 8,000
For the equipment of the tramways by this Act authorised and for the general purposes of the tramway undertaking - - - - -	10,500
For the purchase of lands by this Act authorised -	100,000
For the construction of works of street improvement by this Act authorised - - - - -	33,200

For the extension and alteration of market house	£	A.D. 1914.
and market hall and for the purposes of the		
market undertaking - - - - -	3,000	
For the extension of the cattle market and the		
purposes of such market - - - - -	1,000	

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost of them should be spread over a term of years:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

And whereas plans and sections showing the lines and levels of the works by this Act authorised and also plans showing the land authorised by this Act to be purchased compulsorily appropriated taken and used together with a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken appropriated and used for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Derby and are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Chesterfield Corporation Short title.
Act 1914.

2. This Act is divided into Parts as follows (that is to say):— Act divided
into Parts.

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Street Improvements.

Part IV.—Lands.

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Part V.—Electricity.

Part VI.—Markets.

Part VII.—Streets Buildings Sewers and Drains.

Part VIII.—Infectious Disease and Sanitary Matters.

Part IX.—Public Buildings Parks and Recreation Grounds.

Part X.—Finance.

Part XI.—Miscellaneous.

Incorporation of Acts.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) and Parts II. and III. of the Tramways Act 1870 so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated and form part of this Act.

Interpretation.

4. In this Act unless the subject or context otherwise requires—

Terms to which meanings are assigned by Acts or enactments incorporated with this Act or which have therein special meanings have in this Act and for the purposes of this Act (except where otherwise expressly provided) the same respective meanings;

“The borough” means the borough of Chesterfield;

“The Corporation” means the mayor aldermen and burgesses of the borough acting by the council;

“The Act of 1901” means the Chesterfield Improvement Act 1901;

“The Act of 1904” means the Chesterfield Corporation Tramways and Improvements Act 1904;

“The town clerk” “the surveyor” “the treasurer” “the medical officer” “the inspector of nuisances” mean respectively the town clerk surveyor treasurer medical officer of health and inspector of nuisances for the borough and includes any person duly authorised by the Corporation to act temporarily as such officers;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

“The tramways” means the tramways authorised by this Act;

“The tramway undertaking” means the tramway undertaking of the Corporation for the time being authorised and “tramway revenue” means the revenue of the said undertaking; A.D. 1914.

“The electrical undertaking” means the electrical undertaking of the Corporation for the time being authorised and “electrical revenue” means the revenue of the said undertaking;

“Infectious disease” means and includes the diseases enumerated in section 6 of the Infectious Disease (Notification) Act 1889 and such other diseases as shall from time to time be declared to be infectious in pursuance of that Act or any amendment thereof;

“Daily penalty” means a penalty for each day on which an offence is continued after conviction thereof.

PART II.

TRAMWAYS.

5. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain both within and outside the borough the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper and convenient rails plates sleepers channels pipes conduits tubes passages for ropes cables lines and wires pits underground chambers shafts manholes dynamos turntables triangles pillars posts poles brackets works and conveniences connected therewith and may equip the same with the necessary plant and rolling stock: Power to make tramways.

Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways hereinbefore referred to and authorised by this Act are—

Tramway No. 1 (a single line 3 furlongs 0·03 chain or thereabouts in length and forming with the existing tramway a double line between the points of commencement and termination) situate wholly within the parish and borough of Chesterfield commencing at the junction

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of Sheffield Road with Newbold Road by a junction with the existing tramway of the Corporation at that point passing thence along the Sheffield Road and terminating in the Sheffield Road by a junction with the existing tramway of the Corporation at a point 4·15 chains or thereabouts south of the point where the boundary of the borough crosses that road :

Tramway No. 2 (a single line 3 furlongs 2·73 chains or thereabouts in length and forming with the existing tramway a double line between the points of commencement and termination) situate wholly in the parish of Newbold and the parish of Whittington and the urban district of Whittington and Newbold commencing in Sheffield Road, by a junction with the existing tramway of the Corporation at a point 3·78 chains or thereabouts north of Dark Lane in the parish of Newbold passing thence along the Sheffield Road to a point 5·13 chains or thereabouts south of the terminus of the existing tramway of the Corporation in Sheffield Road in the parish of Whittington and terminating by a junction with such tramway.

Period for completion of tramways.

6. If the tramways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted for making or completing the same or otherwise in relation thereto respectively shall cease except as to so much thereof as shall then be completed.

Works to form part of tramway undertaking of Corporation.

7. The tramways and the works connected therewith shall for all purposes including the demanding taking and recovery of tolls rates fares and charges form part of the tramway undertaking of the Corporation and the provisions of Part II. of the Act of 1904 and of the enactments incorporated with that Act and any byelaws and regulations made in pursuance thereof so far as such provisions byelaws and regulations are applicable to and are not inconsistent with or varied by the provisions of this Act shall extend and apply to the tramways and works as if they had been authorised by the said Act and were " tramways " within the meaning of that Act :

Provided that in the exercise of the powers conferred on the Corporation by the said Act with reference to the tramways no posts or other apparatus shall be erected on the carriageway except with the consent of the Board of Trade.

8.—(1) The Corporation from time to time may with the consent of the Board of Trade make maintain alter and remove such crossings crossovers passing places sidings turnouts junctions and other works in addition to those particularly specified in and authorised by the Acts and Orders relating to the tramways as they from time to time find necessary or convenient for the efficient working of the tramways or for forming junctions with other tramways or light railways or for providing access to any generating stations warehouses stables or carriage-houses or works of the Corporation or to any premises near any part of the tramways.

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Power to
make addi-
tional cross-
overs and to
double tram-
way lines
and repeal of
section 13
of Act of
1904.

(2) Notwithstanding anything shown on the deposited plans with respect to the tramways the Corporation either when constructing the tramways or at any time thereafter and from time to time may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the tramways and may with the like consent at any time construct or take up and reconstruct any of the tramways in such position in the road in which it is constructed or authorised to be constructed as they may think fit.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not (except with the consent of the Board of Trade) be so laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

(4) The expression "the tramways" in this section shall mean and include any tramways for the time being belonging to or authorised to be constructed by the Corporation.

(5) Section 13 (Power to make additional crossovers and to double tramway lines) of the Act of 1904 is hereby repealed.

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Use of tram-
way posts by
Postmaster-
General.

9.--(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Corporation in connection with the tramways authorised by this Act and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

- (a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways:
- (b) The Postmaster-General shall give to the Corporation not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as hereinafter provided:
- (c) Unless otherwise agreed between the Postmaster-General and the Corporation the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expenses of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Corporation or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section:

- (d) Unless otherwise agreed or in case of difference determined as hereinafter provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as hereinafter provided :
- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road :
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair :
- (g) The Postmaster-General shall make good to the Corporation and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Corporation their officers or servants :
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Corporation and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Corporation or failing agreement determined as hereinafter provided :
- (i) The Corporation shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and

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working of the tramways or by any accident arising thereon or by the authorised use by the Corporation of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Corporation their officers or servants :

(j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Corporation the value of the same Provided that if the Corporation or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as hereinafter provided.

(2) Nothing in this section contained shall prevent the Corporation from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connection with their tramways or other municipal undertakings or shall take away any existing right of the Corporation of permitting the use by any company or person of their posts standards or brackets in connection with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as hereinafter provided.

(3) All differences arising under this section shall be determined in manner provided by sections four and five of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression "the Corporation" includes their lessees ;

The expression "telegraph" has the same meaning as in the Telegraph Act 1869 ;

Other expressions have the same meaning as in the Telegraph Act 1878.

PART III.

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STREET IMPROVEMENTS.

10. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands shown on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the street improvements and other works hereinafter described (namely):—

Power to
execute
street im-
provements.

Work No. 1 A widening and improvement of Newbold Road on its south-westerly side commencing at a point at the north-westerly corner of the property known as No. 50 Holywell Street and terminating at a point at the north-easterly corner of the malthouse in the occupation of W. and S. Burkitt:

Work No. 2 A widening and improvement of Sheffield Road on its easterly side commencing at a point at the north-westerly corner of the property known as No. 63 Sheffield Road and terminating at a point at the south-westerly corner of the property known as No. 81 Sheffield Road:

Work No. 4 A new street thirty-six feet in width commencing at the south end of Spencer Street and thence proceeding in a southerly direction and terminating in Saltergate at a point sixty-three yards or thereabouts east of the junction of Tennyson Avenue with Saltergate:

Work No. 5 A new street forty feet in width commencing at the junction of Queen Street with Tennyson Avenue and thence proceeding in a westerly direction and terminating at the junction of Cobden Road with Cross Street:

Work No. 6 A widening and improvement of Brockwell Lane on both sides thereof:—

(A) On the north-easterly side thereof commencing at a point at the south-easterly corner of the nursery gardens in the occupation of R. W. Proctor and Sons and terminating at a point at the south-easterly boundary of the property in the occupation of Ernest Barnes;

(B) On the north-easterly side thereof commencing at the south-westerly boundary of property in the

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occupation of Walter Timmins and terminating eight yards or thereabouts south-east of the north-westerly corner of garden in the occupation of William John Slack;

(c) On the north-easterly side thereof commencing at its junction with the occupation road leading to Clubmill Terrace and terminating at a point ten yards south-east of the entrance to the property in the occupation of Charles James Saunders;

(d) On the south-westerly side thereof commencing at a point ninety-two yards or thereabouts north-west of the westerly corner of the cottage in the occupation of John Robert Spiby and terminating at the north-westerly gatepost of the entrance to the nursery gardens in the occupation of R. W. Proctor and Sons:

Work No. 7 A widening and improvement of Boythorpe Road on both sides thereof:---

(A) On the westerly side thereof commencing at a point at the south-easterly corner of the property in Devonshire Terrace in the occupation of Ernest John Palmer and terminating at a point seventy-seven yards or thereabouts southwards thereof;

(B) On the westerly side thereof commencing at a point sixty yards or thereabouts north of the occupation road leading to Riber Terrace and terminating at its junction with the said occupation road;

(c) On the easterly side thereof commencing at a point one hundred and forty yards or thereabouts north of the south-west corner of Queen's Park and terminating at a point six feet or thereabouts east of the south-west corner of Queen's Park aforesaid:

Work No. 9 A widening and improvement of Castle Yard on the westerly side commencing at a point at the south gable of the property in the occupation of Sharp and Company and terminating at a point at the south gable of the stable in the occupation of William Boulter:

Work No. 10 A new street thirty-six feet in width commencing at the easterly side of Castle Yard five yards or thereabouts south of the gable of the stable in

the occupation of William Boulter and thence proceeding in an easterly direction and terminating on the westerly side of Three Tuns Road seventy-seven yards or thereabouts south of Low Pavement: A.D. 1914.
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Work No. 11 A widening and improvement of Chatsworth Road on the northerly side commencing at a point at the south-easterly corner of the property No. 335 Chatsworth Road and terminating at a point at the south-westerly corner of St. Thomas' Schools:

Work No. 12 A widening and improvement of the corner of Cross Street West and Chatsworth Road in front of the property known as No. 2 Cross Street West:

Work No. 13 A widening and improvement of the southerly end of Heaton Street on both sides thereof:—

(A) On the westerly side thereof commencing at a point seven yards or thereabouts west of the south-easterly boundary of the property known as No. 73 Heaton Street and terminating at the north-easterly boundary of close in the occupation of Samuel Brailsford;

(B) On the easterly side thereof commencing at a point at the south-westerly boundary of property known as No. 475 Chatsworth Road and terminating at a point at the south-westerly boundary of building site owned by Samuel William Doe:

Work No. 14 A widening and improvement of Old Road on its northerly side commencing at a point at the south-easterly corner of the forecourt to the school-house and terminating at the north-easterly corner of forecourt to property known as No. 101 Old Road:

Work No. 15 A widening and improvement of Hoole Street on the north-easterly side thereof and of Calow Lane on the north-westerly side thereof commencing at a point at the south corner of forecourt to property known as No. 4 Hoole Street and terminating at a point twenty-seven yards north-east of the south corner of property known as No. 2 Hoole Street:

Work No. 16 A widening and improvement of the easterly end of Storforth Lane on both sides thereof:—

(A) On the northerly side thereof commencing at a point twenty-seven yards or thereabouts north of its

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junction with Hasland Green and terminating at a point at the south-easterly corner of the forecourt to the property known as No. 2 Storforth Lane;

(B) On the southerly side thereof commencing at a point eleven yards or thereabouts south of its junction with Hasland Green and terminating at a point fifty-three yards or thereabouts west of Hasland Green:

Work No. 17 A new road forty feet in width commencing at the south end of the Great Central Railway bridge over Spital Lane proceeding in a south-westerly direction and terminating in Hasland Road fifty yards or thereabouts north-west of Central Street:

Work No. 18 A widening and improvement of Dixon Road on the northerly and westerly sides thereof commencing at its junction with Lordsmill Street and terminating at a point thirty yards or thereabouts south of its junction with Hollis Lane:

Work No. 19 A widening and improvement of Hollis Lane on the southerly side thereof commencing at its junction with Dixon Road and terminating at its junction with St. Mary's Gate:

Work No. 20 A widening and improvement of Lordsmill Street and St. Mary's Gate on the easterly side thereof commencing at the junction of Dixon Road with Lordsmill Street and terminating at the junction of Hollis Lane with St. Mary's Gate:

Work No. 21 A widening and improvement of Vicar Lane on both sides thereof:—

(A) On the southerly side thereof commencing at its junction with St. Mary's Gate and terminating at a point at the north-westerly corner of the Victoria Schools playground;

(B) On the northerly side thereof commencing at its junction with St. Mary's Gate and terminating at its junction with Packers Row:

Work No. 22 A widening and improvement of Eyre Street on the easterly side thereof and of Hollis Lane on the northerly side thereof commencing at a point at the south-westerly corner of the house known as No. 26 Eyre Street

and terminating at the junction of Spa Lane with Hollis Lane : A.D. 1914.

Work No. 23 A new street fifty feet in width commencing at the east end of Markham Road at its junction with South Place and thence proceeding in an easterly direction and terminating in Lordsmill Street opposite Dixon Road :

Work No. 24 A new street forty feet in width commencing at the junction of Packers Row with Knifsmith Gate and thence proceeding in a westerly direction and terminating in Soresby Street at a point seventy-five yards or thereabouts north of the south-westerly corner of the General Post Office :

Work No. 25 The diversion of the River Hipper from the north-easterly side of the public footbridge at the southerly corner of the Corporation's cattle market and proceeding in an easterly direction and terminating at the north side of the bridge of the Midland Railway (Brampton branch) :

The said works will be situate wholly within the borough :

Provided that with respect to Work No. 25 before the same shall be completed and the said River Hipper diverted the Corporation shall acquire all the lands shown on the deposited plan with respect to the said work to be acquired.

11. The provisions contained in the following sections of the Act of 1901 shall apply for the purposes of the execution of the provisions of this Part of this Act as if they were re-enacted in this Act (that is to say) :— Application of certain sections of Act of 1901.

Section 7 Limits of lateral and vertical deviation ;

Section 8 Period for completion of works ;

Section 9 Power to make subsidiary works ;

Section 10 Alteration of position of sewers pipes &c. ;

Section 11 Streets disused vested in Corporation.

12.—(1) The Corporation during the execution and for the purposes of the street improvements may break up and also temporarily stop up divert and interfere with any street and may for any reasonable time prevent all persons other than those bona fide going to or returning from any house in the street from passing along and using the same. Breaking up and temporary closing of streets.

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(2) The Corporation shall provide reasonable access for persons bonâ fide going to or returning from any such house.

Stopping up
footpaths in
case of
diversion.

13.—(1) Upon the completion of Work No. 4 by this Act authorised and so soon as the same is opened for public traffic the Corporation may stop up and cause to be discontinued as a footpath or way such portions of the existing footpath or way known as Brickyard Walk as are shown on the deposited plans and sections to be stopped up between the westerly side of Marsden Street and the south-easterly corner of Spencer Street.

(2) Upon the completion of Work No. 23 by this Act authorised and so soon as the same is opened for public traffic the Corporation may stop up and cause to be discontinued as a footpath or way such portions of the existing footpath or way known as Silk Mill Walk as are shown on the deposited plans and sections to be stopped up between the south side of the girder bridge over the River Hipper at the west end of Hipper Street and the Midland Railway bridge (Brampton branch) over the public footpath from Park Road to Lordsmill Street.

(3) Upon the completion of Work No. 24 by this Act authorised and so soon as the same is opened for public traffic the Corporation may stop up and cause to be discontinued as a footpath or way such portions of the existing footpath or way known as Elder Yard as are shown on the deposited plans and sections to be stopped up between Knifsmith Gate and the point where the proposed diversion joins Elder Yard.

(4) As from the completion of Work No. 4 of Work No. 23 and of Work No. 24 respectively and so soon as the same are respectively opened for public traffic all rights of way along the aforesaid existing footpaths or ways so authorised to be stopped up as aforesaid respectively shall be extinguished. Provided that the Corporation shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of land otherwise than by agreement.

(5) Provided always that before the completion of Work No. 4 Work No. 23 and Work No. 24 respectively the Corporation may make such temporary diversions of the existing footpaths or ways respectively as may be necessary or desirable during the construction of the works by this Act authorised and may stop up and discontinue the portions of the existing

footpaths or ways for which the temporary diversions are substituted and shall maintain such temporary diversions in good order and repair until the completion of Work No. 4 Work No. 23 and Work No. 24 respectively. A.D. 1914.

14. Upon the completion of Work No. 25 by this Act authorised the Corporation may stop up and discontinue the flow of water over and along so much of the River Hipper as is shown on the deposited plan of the said work to be diverted and thereafter may fill up the channel or bed of the river so diverted and may appropriate and use any lands acquired in connection with or for the purposes of the said work including the said channel and bed for such purposes as they may from time to time determine. As to diversion of River Hipper and use of lands.

15. The following provisions for the protection of the Great Central Railway Company (in this section called "the company") shall unless otherwise agreed apply and have effect (that is to say):— For protection of Great Central Railway Company.

(1) In connection with the construction of the new road leading from Spital Lane to Hasland Road (being Work No. 17 referred to in the section of this Act whereof the marginal note is "Power to execute street improvements") the Corporation shall construct the new road and works by this Act authorised so far as the same pass over adjoin or affect the railway lands and works of the company in such lines within the limits of deviation shown on the deposited plan as shall be approved by the principal engineer for the time being of the company (in this section called "the said principal engineer") and so as to leave undisturbed at all times the lines of railway and other works connected therewith of the company and so as in no way to obstruct impede or interfere with the free and uninterrupted and safe user of the said railway or the traffic thereon and if any obstruction or interference shall be caused or take place the Corporation shall pay to the company full compensation in respect thereof the amount of such compensation to be recovered in case of dispute with full costs in any court of competent jurisdiction:

(2) The company shall at the request of the Corporation lengthen and reconstruct the bridge over the railway

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of the company so as to provide for a roadway forty feet in width between the parapets and with a clear headway of fifteen feet six inches and the whole cost of such lengthening and reconstruction of the said bridge (less such part of such cost as shall be occasioned by the raising of the existing abutments to the height required to give the above-mentioned headway) shall be borne by the Corporation:

- (3) In the event of the company deciding to widen their railway they shall be entitled to widen lengthen or alter the bridge and the approaches thereto so as to afford a clear span of fifty-eight feet over the railway and the Corporation shall in that case contribute and pay to the company such proportion of the incidental cost of the works as shall be attributable to the existing bridge having been widened so as to provide for a roadway of forty feet in width under the last preceding subsection:
- (4) The Corporation shall at all times maintain the said bridge both before and subsequently to its being so widened with the headway mentioned in subsection (2) hereof and if and when the level of such bridge shall be lowered from any cause whatsoever the Corporation shall if called upon by the company so to do raise or lift the said bridge to the heights and levels above Ordnance datum at which the bridge is constructed under the powers of this Act:
- (5) The lengthening and reconstruction of the said bridge and works shall be carried out according to plans sections and specifications previously submitted by the said principal engineer to the surveyor of the Corporation and if the said surveyor shall for the period of one month neglect or refuse to approve such plans sections and specifications or shall disapprove of the same or in case the company and the Corporation should fail to agree or any difference should arise between them then the said works shall be constructed according to plans sections and specifications to be submitted to and approved by an engineer to be agreed upon:
- (6) The Corporation shall not except with the previous consent of the company purchase or acquire any

lands or property of the company but the company shall grant free of cost an easement or right of using so much of the lands of the company as may be necessary for the construction of the said road and bridge: A.D. 1914.

- (7) During the construction of the said road and bridge across and adjoining and near to or affecting the railway property and works of the company the Corporation shall bear and on demand pay to the company all expenses of employment by them of a sufficient number of inspectors or watchmen to be appointed by the company for watching their railway and the works thereof with reference to and during the execution of the intended works:
- (8) The Corporation shall at all times maintain the said bridge and road over the same in substantial repair and good order to the reasonable satisfaction in all respects of the said principal engineer and if and whenever the Corporation fail so to do the company may make and do in and upon as well the lands of the Corporation as their own lands all such works repairs and things as they may reasonably think requisite in that behalf and the sum from time to time certified by the said principal engineer to be a reasonable amount of such expenditure shall be repaid to the company by the Corporation and in default may be recovered by them from the Corporation with full costs in any court of competent jurisdiction:
- (9) When the company require the said bridge or the approaches thereto to be widened lengthened or altered as provided by clause 3 hereof the Corporation shall afford to the company all reasonable facilities for those purposes or any of them and in that event the Corporation shall at their own cost convey unto the company for the purposes of their railway and works their freehold interest in any lands within the limits of the widened bridge:
- (10) Any difference which may arise between the Corporation and the company under this section (other than any difference as to the proper interpretation thereof) shall be referred to an arbitrator to be appointed in default of agreement by the President for the time

A.D. 1914.

being of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such arbitration.

PART IV.

LANDS.

Power to
take lands.

16. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference with the exception of the lands delineated and shown on sheets No. 3 No. 4 and No. 10 of the deposited plans as required for Works No. 3 or No. 8 respectively and may stop up and discontinue all public or other rights of way over all courts or passages shown on such plans and described in such book of reference.

Period for
compulsory
purchase of
lands.

17. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease in the case of lands required for or in connection with Works Nos. 1 2 4 5 9 10 15 16 17 18 19 20 21 23 and 25 authorised by this Act after the expiration of three years from the passing of this Act and in the case of all other lands after the expiration of five years from the passing of this Act.

Application
of certain
sections of
Act of 1901
and Act of
1904.

18. The provisions contained in the following sections of the Acts of 1901 and 1904 shall apply for the purposes of the execution of the provisions of this Part of this Act as if they were re-enacted in this Act (that is to say):—

Act of 1901—

Section 14 Persons under disability may grant easements &c.;

Section 16 Power to retain sell &c. lands;

Section 17 Proceeds of sale of surplus lands;

Section 18 Owners may be required to sell parts only of certain lands and buildings;

Provided that subsection (1) of this section shall be read as though the First Schedule of this Act were substituted for the schedule in that subsection referred to;

Section 19 Benefits to be set off against compensation;

Provided that this section shall apply and have effect only for the purpose of and with respect to lands required

and by this Act authorised to be acquired for or in A.D. 1914.
connection with Work No. 6;

Section 20 Power to appropriate lands for purposes of Act.

Act of 1904—

Section 68 Correction of errors &c. in deposited plans and
books of reference.

19. In determining any question of disputed purchase money or compensation payable in respect of lands taken in pursuance of this Part of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the land created after the first day of January one thousand nine hundred and fourteen if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made erected or created with a view to obtaining or increasing compensation under this Act.

As to com-
pensation in
case of
alterations
after 1st day
of January
1914.

20.—(1) The tribunal shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Corporation had been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant.

Costs of
arbitration
&c. in certain
cases.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

A.D. 1914.

(3) Provided also that this section shall be applicable only in cases when the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice to the effect of this section.

Power to
purchase
additional
lands by
agreement.

21. The Corporation in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Act but the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed ten acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

PART V.

ELECTRICITY.

Application
of Electric
Lighting
(Clauses)
Act 1899 to
Corporation.

22. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Act and the undertaking authorised by the Chesterfield (Corporation) Electric Lighting Order 1894 as confirmed by the Electric Lighting Orders Confirmation (No. 1) Act 1894 and as extended by section 56 (Area of supply) of the Act of 1904 and as further extended by Article XI. (Local Acts and Orders) of the Chesterfield (Extension) Order 1910 as confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1910 and the Corporation in respect thereof shall be subject to those provisions as if those provisions were substituted by this Act for the corresponding provisions of the said Order and of section 56 of the Act of 1904 and such last-mentioned Order and section 56 of the Act of 1904 are hereby repealed without prejudice to anything done or suffered thereunder:

The expressions in the said schedule "the Special Order" shall mean "this Part of this Act":

Provided that nothing in this Part of this Act shall alter or affect the provision contained in the proviso to Article XI. (Local Acts and Orders) of the Chesterfield (Extension) Order 1910.

Undertakers.

23. The Undertakers for the purposes of this Part of this Act and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Corporation.

24. The area of supply of the Corporation for the purposes of this Part of this Act and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the Second Schedule to this Act.

A.D. 1914.

Area of
supply.

25. If at the expiration of three years from the passing of this Act or within such extended period as the Board of Trade by order under the hand of an assistant secretary may allow the Corporation shall not have laid down any distributing mains in the urban district of Brampton and Walton and in the parish of Tapton included in the area of supply the power by this Act conferred upon the Corporation in respect of such urban district and parish or either of them in which no such mains shall have been laid shall cease as from such date as the Board of Trade may by order as aforesaid prescribe.

Power to
revoke Act
where no
mains are
laid.

26. The maximum prices which may be charged by the Corporation as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Third Schedule to this Act.

Maximum
prices.

27.—(1) The Corporation may construct and maintain in or under any street repairable by the inhabitants at large or dedicated to public use sub-stations transforming stations and other works in connection with their electricity undertaking and may in any such street provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient.

Power to
construct
electrical
sub-stations
under
streets.

(2) No sub-station transforming station or other works shall be constructed within a distance of twenty-five yards of any property of any railway company or within a distance of twenty-five yards from any entrance to any manufactory except with the consent in writing of that company or of the occupier of such manufactory as the case may be which consent shall not be unreasonably withheld Any question as to whether such consent is unreasonably withheld shall be referred to the arbitration of a single arbitrator to be appointed failing agreement by the Board of Trade and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

28.—(1) The Corporation may on the application of the owner or occupier of any premises within the area of supply abutting on or erected or being erected in any street laid out

Power to lay
electric lines
&c. in streets
not dedicated
to public use.

A.D. 1914. — or made but not dedicated to public use supply such premises with electrical energy and may lay down take up alter relay repair remove and renew in across along or out of such street such electric lines and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electric Lighting Acts 1882 to 1909 and of the schedule to the Electric Lighting (Clauses) Act 1899 so far as they are applicable for the purposes of this section shall extend and apply to and for the purposes hereof and to any works constructed or executed by the Corporation under the powers of this section.

(2) Provided that nothing in this section contained shall apply to any street belonging to and forming the approach to any station or depôt of a railway company nor shall the Corporation in carrying out the works authorised by this section obstruct or interfere with the convenient access to any such street.

As to maximum power which may be demanded.

29.—(1) The maximum electrical power with which any consumer shall be entitled to be supplied by the Corporation shall not include any supply of energy taken only on extraordinary occasions or as a stand by supply unless such consumer shall pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for these premises the sum to be so paid to be determined in default of agreement by arbitration in the manner provided by section 28 of the Electric Lighting Act 1882.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the date of this Act of any right to which he would be entitled but for the said provisions.

Extending section 15 of Electric Lighting Act 1909.

30. The provisions of section 15 of the Electric Lighting Act 1909 shall extend and apply to the supply of electricity by the Corporation to any premises having a supply of motive power other than electricity.

Period of error in defective meters.

31.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the

then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. A.D. 1914.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

32.—(1) Any person who shall hinder an officer appointed by the Corporation from entering any premises in pursuance of section 24 (Power to enter lands or premises for ascertaining quantities of electricity consumed or to remove fittings) of the Electric Lighting Act 1882 or from exercising the powers contained in that section shall be liable to a penalty not exceeding forty shillings and a daily penalty not exceeding twenty shillings. Further powers as to entry upon premises.

(2) Where any premises which the Corporation are entitled to enter in pursuance of the said section 24 are unoccupied the Corporation may after giving not less than forty-eight hours' notice to the owner thereof or if he is unknown to them and if he cannot be ascertained by them after diligent inquiry by affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

33.—(1) Any expenses incurred by the Corporation in carrying into effect the provisions of this Part of this Act and Part IV. (Electricity) of the Act of 1904 shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses. Expenses and revenue under this Part of Act and Part IV. of Act of 1904 and repeal of section 64 of Act of 1904.

(2) Any moneys received by the Corporation under this Part of this Act and Part IV. (Electricity) of the Act of 1904 shall be applied in manner provided by subsection (1) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899 except capital moneys which shall be applied in manner provided by subsection (2) of the said section.

(3) Section 64 (Expenses and revenue under this Part of Act) of the Act of 1904 is hereby repealed.

34. Section 65 (For further protection of the Derbyshire County Council) of the Act of 1904 shall apply to the purposes of this Part of this Act as if the same were re-enacted in this Act. For protection of Derbyshire County Council.

A.D. 1914.

PART VI.

MARKETS.

Power to extend cattle market.

35. The Corporation may appropriate to and use for the purpose of enlarging and improving their present cattle market the lands delineated on sheet No. 24 of the deposited plans and which they are authorised by this Act to acquire and may erect and provide thereon all necessary buildings approaches accommodation works and conveniences.

As to extension and provision of market buildings and utilisation of lands.

36. The Corporation may alter enlarge improve extend reconstruct and rebuild their existing market house and market hall or they may erect or provide and maintain new buildings therefor and in connection with or as part of such market house or market hall or new buildings or any market place or any of their markets or cattle markets or market undertaking they may maintain and may erect or provide offices shops stores warehouses and other tenements or buildings and for the said purposes or any of them or for any purpose of any of their markets cattle markets or otherwise in connection therewith or with their market undertaking they may subject to the approval of the Local Government Board appropriate and use any lands for the time being vested in or belonging to them.

Power to let shops &c. in markets.

37. The Corporation notwithstanding anything contained in the recited Acts or any Acts with respect to their markets cattle markets or any of them or their market undertaking may let for any purpose and may lease for any period not exceeding twenty-one years at such rent and on such terms and conditions as they may think fit any office shop store warehouse tenement or building situate in any of their markets or forming part of or acquired or erected in connection with any of their markets cattle markets or their market undertaking and the lessee of any such office shop store warehouse tenement or building his executors and administrators with the consent of the Corporation may assign the same for the residue of his term.

As to sales elsewhere than in markets.

38. Section 25 (Penalty on parties hawking within market house or place without payment of toll) of the Chesterfield Market Act 1854 is hereby repealed and section 13 (Sales elsewhere than in markets prohibited under a penalty not exceeding forty shillings) of the Markets and Fairs Clauses

Act 1847 is hereby declared to be in force with respect to the market undertaking of the Corporation and within the borough. A.D. 1914.

39. The Corporation may permit any market place or any land used for the purpose of any market or cattle market and any open land belonging to them adjoining thereto to be used for public meetings public services public speaking and public lectures and they may make regulations with respect to the purposes of such use and as to the conduct of persons resorting thereto. Use of market place for public meetings &c.

40. The power conferred by the Chesterfield Market Act 1854 with respect to the taking of stallages rents or tolls shall be construed and shall extend to enable the Corporation at all times to demand and take stallages rents and tolls as in such Act provided in respect of any place appropriated to or used by the Corporation for the purpose of any market or cattle market or of their market undertaking. As to market charges.

41. In place of all or any of the stallages rents tolls or other charges specified in Schedules B. C. and D. to the Chesterfield Market Act 1854 the Corporation may from time to time by resolution approved by the Local Government Board fix other charges and the charges so fixed by the Corporation shall thereafter be the maximum charges which the Corporation may demand and take for the several matters to which those charges respectively relate. Alterations in market charges.

42. The market-keeper any officer of the market the medical officer the inspector of nuisances or any constable may remove or exclude from any market or cattle market of the Corporation any old emaciated or diseased animal which in the opinion of a duly registered veterinary surgeon is unfit for human food or is suspected by such surgeon to be affected with tubercular disease. Power to exclude old and diseased animals from markets and fairs.

43. The following sections of the Chesterfield Market Act 1854 are hereby repealed:— Repeal of certain sections of Chesterfield Market Act 1854.

Section 21 (No enlargement of market without consent of justices in quarter sessions);

Section 23 (Lands for extraordinary purposes);

Section 30 (As to use of the market hall &c. after payment off of sinking fund).

A.D. 1914.

PART VII.

STREETS BUILDINGS SEWERS AND DRAINS.

Approval
and condi-
tions of
formation of
streets.

44. Whenever application shall be made to the Corporation to approve the laying out of or notice shall be given to the Corporation of intention to lay out a new street (including in that expression the formation of a new street or the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) within the borough the Corporation may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Corporation with plans and particulars showing the general scheme for the development or laying out of such estate or lands and in such case the date of the making of application or of the giving of notice as aforesaid shall for the purposes of any enactments or provisions in force for the time being with respect to the laying out of new streets be deemed to be the date on which plans and particulars required as aforesaid shall be so furnished.

Frontage
line in new
streets.

45.—(1) Every person who intends to form a new street shall in addition to any other information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings in force within the borough distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called “the building line”).

(2) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof nor any addition to any house or building until the building line for such street has been approved by the Corporation nor beyond or in front of the building line approved by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of section 3 of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been submitted to and approved by the Corporation.

(4) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of any such street than one half of the minimum width of street allowed by the building byelaws of the Corporation in force for the time being the Corporation shall make compensation to the owner of the land for any damage sustained by him by reason of his being unable to build upon such land. A.D. 1914.

(5) For the purpose of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(6) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

46.—(1) It shall be lawful for the Corporation for the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which any application for the approval of the Corporation of the laying out of a new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) is made to require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land as may be necessary or convenient for such purposes and the provision to be so made and the terms and conditions upon which such provision is to be made shall failing agreement between the Corporation and the respective owners of such estates or lands on the application of the Corporation or any such owner be determined by arbitration in accordance with the provisions of the Arbitration Act 1889 and the Corporation may for securing the execution of any such purposes agree to pay and may and shall pay to any such owner or owners such sums as may be agreed upon or in default of agreement be determined by arbitration as aforesaid. Provided that the payment of money by any such owner shall not be made a term or condition of any award made under this section otherwise than with his consent. As to adjustment of boundaries on exchange of lands.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries

A.D. 1914. — or exchange of lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Corporation.

(3) Any lands or moneys received by any owner in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall be held by such owner subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) as the lands exchanged therefor.

Appeal to
petty ses-
sional court.

47.—(1) Any person deeming himself aggrieved by any requirement of or by the Corporation under any of the last three preceding sections of this Act may within fourteen days from the date of such requirement appeal to a petty sessional court and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(2) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the petty sessional court may direct.

Widening
roads when
only one
side is built
upon.

48. When a road or lane within the borough is about to become a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street is about to be built on the Corporation may instead of requiring the owner of such land to widen such road or lane to a width prescribed by the byelaws in force within the borough require such owner to widen such road or lane so as to give a width not less than one half of such width prescribed as aforesaid from the old centre line of such road or lane to the boundary thereof adjoining such land Provided that if and when the land on the opposite side of such road or lane shall be in course of being built on or prior to the Corporation approving plans for the erection of buildings upon the land on such opposite side the owner of such land shall subject as aforesaid complete the widening of such road or lane so as to give the complete width prescribed as aforesaid.

Corporation
may define
future line of
streets.

49.—(1) When any street or road repairable by the inhabitants at large or any part thereof is in the opinion of the Corporation narrow or inconvenient or without sufficiently

regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Corporation may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road. The line which in any case the Corporation propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by the town clerk and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Corporation formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain and in cases where such name and address cannot be ascertained by affixing such notice to or on the premises. No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.

(2) The Corporation may and if required so to do by the owner shall purchase and the owner shall if required so to do by the Corporation sell the land for the time being unbuilt upon lying between any such line as aforesaid and the street or road and the same when purchased shall vest in the Corporation as part of the street or road and the amount of purchase money shall in case of difference be settled by arbitration under the Arbitration Act 1889.

(3) Whenever in any of the above cases the Corporation shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Corporation shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Corporation requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Corporation under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

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(5) If after any such line has been defined and prescribed as aforesaid any person shall offend against this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Application
of purchase
money in
certain cases.

50. The provisions of the Lands Clauses Consolidation Act 1845 with respect to the purchase money or compensation coming to parties having limited interests or prevented from treating or not making title are hereby incorporated with this Act and shall apply to any purchase money or compensation payable under the foregoing provisions of this Part of this Act.

Restrictions
on placing
rails beams
&c. over
across or
along streets.

51.—(1) It shall not be lawful for any person to fix or place any bridge overhead rail beam cable or pipe or other similar apparatus (other than apparatus for telegraphic telephonic or railway signalling purposes) over across or along any street without the consent of the Corporation which consent shall be in writing under the hand of the town clerk and may contain such reasonable terms and conditions as the Corporation think fit Any person acting in contravention of the provisions of this section and of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings Provided that nothing in this section shall extend to any works of any undertakers within the meaning of the Electric Lighting Act 1882 to which the provisions of the said Act apply.

(2) Nothing in this section shall extend to any apparatus belonging to His Majesty's Postmaster-General.

Prevention
and removal
of projections
over streets.

52. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Corporation may determine to be dangerous or an obstruction to the safe or convenient use of any street.

No building
allowed until
street de-
fined.

53.—(1) No person except with the consent of the Corporation shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings. A.D. 1914.

54. Whenever any person erecting any building shall be desirous of leaving an opening which may be a source of danger to the public or of placing any steps or other projection on any forecourt area or space left in front of such building such forecourt area or space shall if required by the Corporation be well and sufficiently fenced off from the footpath or street and any person who shall offend against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Forecourts to be fenced off from streets.

55. The Corporation may provide and maintain orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper and the storage of sand grit or shingle in upon or under the streets of the borough of such dimensions and in such positions as they may from time to time determine. Street orderly bins.

56. Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated food storage accommodation and any owner who shall occupy or allow to be occupied any dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Provision of food storage accommodation in new houses.

57. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words "and floor area" had been inserted therein after the word "height" in subsection (1) of that section. Area of habitable rooms.

58.—(1) Every new building exceeding thirty-five feet in height used or intended to be used as a tavern hotel restaurant hospital boarding-house common lodging-house or school shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein or resorting thereto as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Corporation shall have issued a certificate that the provisions of this subsection have been complied with in relation thereto. Means of escape from building in case of fire.

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(2) The means of escape in case of fire provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction.

(3) Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

(4) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to
require re-
pair or taking
down of
dilapidated
buildings.

59.—(1) Where an unoccupied building is ruinous or so far dilapidated as thereby to have become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Corporation may make an order upon the owner thereof requiring him within a reasonable time to be prescribed by the order to either put such building (in this section referred to as “a neglected structure”) into a state of repair and good condition to the satisfaction of the Corporation or take down the same and in addition to or in substitution for the foregoing order they may make an order upon such owner requiring him to fence the ground upon which the neglected structure is or was standing or any part thereof and in either case they may also make an order for the costs incurred up to the time of the hearing.

(2) If the order is not obeyed within the time thereby prescribed the Corporation at any time after the expiration of such time may enter upon the neglected structure or such ground as aforesaid and execute the order.

(3) Where the order provides for the taking down of a neglected structure or any part thereof the Corporation in executing the order may remove the materials to a convenient place and (unless the expenses of the Corporation under this section in relation to such structure are paid to them within fourteen days after such removal) sell the same if and as they in their discretion think fit.

(4) All expenses incurred by the Corporation under this section in relation to a neglected structure may be deducted by the Corporation out of the proceeds of the sale and the

surplus (if any) shall be paid by the Corporation on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Corporation or if the proceeds of the sale are insufficient to defray the said expenses the Corporation may recover such expenses or such insufficiency from the owner of the structure together with all costs in respect thereof in a summary manner but without prejudice to his right to recover the same from any lessee or other person liable to the expenses of repairs.

A.D. 1914.

60.—(1) If it appears to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of a sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners summarily as a civil debt.

Corporation may order houses to be drained by a combined drain.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Corporation except with the consent of the owner or owners of the said house.

61. The powers given by section 19 (Extension of 38 & 39 Vict. cap. 55 sec. 41) of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Amendment of section 19 of Public Health Acts Amendment Act 1890.

62. If in any street not repairable by the inhabitants at large the Corporation for the purpose of main drainage or otherwise shall require a larger sewer to be made than they

Power to require specially

A.D. 1914. consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation.

Power to lay drains in private streets. **63.** The Corporation may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation in case of dispute to be ascertained by and recovered before a court of summary jurisdiction.

Making of communications between drains and sewers. **64.** If the owner or occupier of any premises within the borough desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Corporation such communication shall be made by the Corporation upon the cost or estimated cost of making the communication being paid to the Corporation or the payment thereof to them being secured to their satisfaction and the Corporation may execute all works necessary for that purpose.

For preventing sand soil &c. from being washed into streets. **65.**—(1) The owners or occupiers of all lands shall construct such works as may be necessary for the purpose of preventing as far as reasonably practicable the soil sand and other debris of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully or cause the houses in such street to be flooded.

(2) If any person shall for one month after notice in writing from the Corporation fail in any respect to comply with the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) For the purpose of this section “public street” means a street repairable by the inhabitants at large.

Watercourse choked up to be a nuisance under Public **66.** Any river stream or watercourse or any part or parts thereof respectively within the borough so choked or silted up as to obstruct or impede the proper flow of water along the

same and thereby to cause or render probable an overflow of such river stream or watercourse on to or into the land and property adjacent thereto shall be deemed to be a nuisance within the meaning of section 91 (Definition of nuisances) of the Public Health Act 1875 and all the provisions of that Act relating to nuisances shall apply to every such river stream or watercourse notwithstanding that the same may not be injurious to health.

A.D. 1914.

Health Act
1875.

67.—(1) Before the owner of any land shall culvert or cover over any watercourse thereon forming part of the natural drainage of the area involved he shall submit for the approval of the Corporation plans sections and specifications of such watercourse and the method of culverting or covering over the same and the Corporation may subject as hereinafter provided require such owner to so construct any such culvert or so to cover over any such watercourse as to secure the free and uninterrupted passage of the water flowing in any such watercourse:

Water-
courses not
to be covered
over except
in accord-
ance with
approved
plans.

Provided that—

(A) No requirement of the Corporation under this section shall operate to compel any such owner to receive upon his land or to make provision for the passage of a greater quantity of water than he would have been obliged to receive or to permit to pass if this section had not been enacted;

(B) If with the consent of such owner the Corporation shall require him to make provision for the passage of a larger quantity of water than he is obliged to permit to pass at the time of the commencement of any work under this section any additional cost occasioned by such requirement shall be borne by the Corporation.

(2) If any difference shall arise between the Corporation and such owner as to the expediency or necessity of the works required by the Corporation to be executed under this section such difference shall be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply thereto.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

A.D. 1914.

Prohibiting
entry of
petrol &c.
into sewers.

68. Every person who wilfully turns or permits to enter into any sewer of the Corporation or any drain communicating therewith any petrol oil or other like deleterious substances from any workshop motor garage or other like premises shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds.

Saving for
railway com-
panies.

69. Nothing in this Part of this Act or in any byelaw made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connection with their railway under any Act of Parliament or to any street so belonging and used as aforesaid.

PART VIII.

INFECTIOUS DISEASE AND SANITARY MATTERS.

Information
to be fur-
nished to
medical
officer and
penalty for
furnishing
false infor-
mation.

70.—(1) The occupier of any building in the borough which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

(2) Any occupier knowingly furnishing false information shall be liable for every such offence to a penalty not exceeding forty shillings.

(3) In this section the expression “occupier” shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

Houses in-
fested with
vermin to be
cleansed.

71.—(1) If the medical officer has reasonable cause to suppose that any house is infested with vermin he or any inspector of nuisances may enter such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

(2) Where on the certificate of the medical officer it appears to the town clerk that any house is infested with vermin the town clerk shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and

any articles therein and to take such other steps for the purpose of destroying and removing vermin as the case may require. A.D. 1914.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable on summary conviction to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as hereinafter provided) be recoverable as a civil debt from the person making the default.

(4) Any person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom the notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

72.—(1) No person being the parent or having the care or charge of a child who is or has been attending any school which has been closed by order of the Corporation with the view of preventing the spread of infectious disease shall permit such child to attend any Sunday school in the borough without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school without undue risk of communicating disease to others. Restrictions on attendance of children at Sunday school when infectious disease exists.

(2) Any person who shall offend against this section shall for every such offence be liable to a penalty not exceeding forty shillings.

73.—(1) The medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may within the borough examine the person and clothing Cleansing of children and their clothing.

A.D. 1914. — of any child (other than children in boarding schools including reformatory and industrial schools) and if on examination the medical officer or any such authorised person as aforesaid shall be of opinion that the person or clothing of any such child is infested with vermin or is in a foul or filthy condition the medical officer may give notice in writing to the parent or guardian or other person who is liable to maintain or has the actual custody of such child requiring such parent guardian or other person to cleanse properly the person and clothing of such child within twenty-four hours after the receipt of such notice.

(2) If the person to whom any such notice as aforesaid is given fail to comply therewith within the prescribed time the medical officer or some person provided with and if required exhibiting the authority in writing of the medical officer may remove the child referred to in such notice and may cause the person and clothing of such child to be properly cleansed in suitable premises and with suitable appliances and if necessary for that purpose may without any warrant other than this Act convey to such premises and there detain such child until such cleansing is effected.

(3) Where after the person or clothing of a child has been cleansed under this section the parent or guardian or other person liable to maintain the child allows him to get into such a condition that it is again necessary to proceed under this section the parent guardian or other person shall on summary conviction be liable to a fine not exceeding ten shillings.

(4) The examination or cleansing of females under this section shall only be effected either by a person duly qualified as a medical practitioner or by a female person being a member of the staff of the medical officer.

(5) Any notice required to be given under this section shall be deemed to be properly served by giving it to the person to whom it is addressed or leaving it for him with some inmate of his residence or by sending the same by post in a registered letter to his usual or last known residence:

In any such notice it shall be sufficient to designate the person to be served as the parent guardian or other person liable to maintain or having the actual custody of such child whose person or clothing requires to be cleansed.

(6) For the purpose of this section the expression "child" means a person under the age of fourteen years.

74.—(1) If the medical officer certifies in writing that any person is suffering from pulmonary tuberculosis and is in an infectious state and that the lodging or accommodation with which such person is provided is such that proper precautions to prevent the spread of the infection cannot be taken or that such precautions are not being taken the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate may if they think fit make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the borough or within a convenient distance of the borough and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order.

A.D. 1914.
Removal of
persons
suffering
from pul-
monary
tuberculosis
to hospital.

(2) The medical officer shall give the person so suffering or some person being in charge of the person so suffering three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The Corporation may in their discretion make good any probable financial loss falling upon the relatives of or those actually dependent upon any person so suffering occasioned by the removal of any such person to a suitable hospital or place as aforesaid whether voluntarily or in pursuance of an order made by the court as aforesaid and on the hearing of any application under this section the court shall take into consideration the before-mentioned loss and shall not make an order unless they are satisfied that the Corporation will make good such loss.

(4) An order under this section may be addressed to such constable or officer of the Corporation as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper the order should be made

A.D. 1914. Such person or other person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The provisions of this section shall cease to be in force at the expiration of three years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by Provisional Order made by the Local Government Board and confirmed by Parliament which Order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875.

For preventing contact with body of person dying of infectious disease.

75. Any person who being in charge of the body of any person who has died from any dangerous infectious disorder or infectious disease shall permit or allow any other person unnecessarily to come into contact with such body shall be liable to a penalty not exceeding five pounds.

Medical examination of inmates of common lodging-houses &c. when infectious disease prevails.

76. Whenever the medical officer shall report in writing to the Corporation or to a committee of the Corporation authorised for this purpose by the Corporation that there is a prevalence of dangerous infectious disease in the borough or any adjoining or neighbouring borough or district and that there are reasonable grounds to apprehend the spread or communication of such disease to persons within the borough by persons resorting to common lodging-houses the Corporation or such committee as aforesaid may by resolution declare that by reason of the prevalence of the dangerous infectious disease named in the resolution it is expedient that the medical officer should be entrusted with the special powers hereinafter mentioned and subject as hereinafter provided the following provisions shall thereupon be in force within the borough for such period as the Corporation or such committee as aforesaid having regard to the circumstances of the case shall in the resolution determine (that is to say) :—

- (1) The medical officer may when authorised by warrant granted by any justice on complaint on oath by the medical officer that he has reason to believe that the dangerous infectious disease named in the resolution of the Corporation or of such committee as aforesaid may exist or has recently existed in any common lodging house in the borough medically examine any

person found in any common lodging-house in the borough with a view to ascertaining whether such person is suffering or has recently suffered from such disease Any person obstructing the medical officer in making the examination aforesaid shall be liable to a penalty not exceeding forty shillings for each offence :

A.D. 1914.

- (2) A copy of every such resolution shall forthwith be sent by the Corporation or such committee as aforesaid to every keeper of a registered common lodging-house in the borough and to the Local Government Board :
- (3) Unless approved by the Local Government Board any such resolution shall cease to be in force at the expiration of fourteen days after it is passed or any earlier date fixed by the Local Government Board :
- (4) A warrant granted under this section may authorise the medical officer to exercise the powers of examination hereinbefore conferred during such period not exceeding the period during which the provisions aforesaid shall be in force as may be specified in such warrant.

77. When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall die of such disease the medical officer may give notice thereof to the person responsible for the conduct of the burial of the body of such person and in such case it shall not be lawful to transport such body by railway or other public conveyance (not being a conveyance reserved for such purpose) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

Removal of body of person dying of infectious disease.

78. If any person shall at the request of the Corporation or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Corporation

Power to compensate persons for ceasing employment to

A.D. 1914.

prevent
spread of
disease.

Byelaws as
to premises
used for
manufac-
turing certain
foods.

Discontinu-
ance of
offensive
trades.

may make compensation to him for any loss he may sustain by reason of such stoppage.

79. The Corporation may make byelaws for securing the clean condition of premises where potted or preserved foods are manufactured or prepared for consumption by the public and the proper lighting ventilation and drainage thereof.

80.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and in the opinion of the Corporation it is inexpedient in the interests of public health that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Corporation under the hand of the town clerk to cease to use such premises for the carrying on of any offensive trades.

(2) Any person who fails or neglects to comply with the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Corporation require any person to cease to use such premises for the carrying on of an offensive trade they shall pay compensation to such person for any loss sustained by him in consequence of the action of the Corporation.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Corporation with reference to offensive trades.

Defining the
establishing
of a new
business.

81. For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 a trade business or manufacture shall be deemed to be established not only if it is established anew but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the consent in writing of the Corporation but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or

that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area. A.D. 1914.
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82. The provisions of section 34 of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order 1885 made thereunder and of any other order made or to be made under the said section or relating to dairies cowsheds and milkshops and of any regulations made or to be made by the Corporation under any such order for securing the cleanliness of milk vessels used for containing milk for sale shall apply to all vessels used for the reception measurement storage or delivery of milk by persons selling milk by retail in the streets. Cleansing of milk vessels.

83. The veterinary inspector of the Corporation may exercise the powers of section 116 (Power of medical officer of health to inspect meat &c.) of the Public Health Act 1875 in the same manner as the medical officer or the inspector of nuisances and the Public Health Acts shall apply within the borough as if such veterinary inspector were mentioned in the said section in addition to the medical officer and the inspector of nuisances. Extension of powers of veterinary inspector.

84. The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide galvanised iron or enamelled iron dustbins for the convenient removal of house refuse and such dustbins shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall for every such offence be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that (except as is hereinafter contained) this section shall not authorise the Corporation to require the provision of a dustbin thereunder in any case in which a dustbin or ashpit in use at the passing of this Act is of suitable size and in proper order and condition. Provided that the Corporation may in any case they think fit require the provision of a dustbin in lieu of any ashpit in use at the passing of this Act but in such case they shall except where the medical officer or the inspector of nuisances shall have certified that owing to wilful neglect on the part of the owner or occupier after due notice to keep the same in proper repair any such ashpit is in such a state as to create a nuisance or be injurious to health bear and pay such sum towards the expense Regulation dustbins.

A.D. 1914. of providing such dustbin (being not less than one half thereof) as they may consider just and proper according to the circumstances and the remainder of such expenses shall be borne by the owner or occupier.

PART IX.

PUBLIC BUILDINGS PARKS AND RECREATION GROUNDS.

As to municipal buildings.

85. The Corporation may from time to time alter improve reconstruct and enlarge the existing Stephenson Memorial Hall and Municipal Hall belonging to them and may erect acquire or provide other municipal or police buildings and may for such purposes acquire by agreement and hold lands and may provide such additional or other buildings in connection therewith and may furnish and equip maintain insure and carry on the same as they may think fit.

Power to provide public buildings &c.

86. The Corporation may provide or acquire or may on any pleasure ground or subject to the approval of the Local Government Board on any lands of which for the time being they may be the owners erect and construct or allow to be erected and constructed and hold furnish equip maintain insure and carry on public halls pavilions bandstands assembly rooms and other public buildings with all necessary and suitable offices committee rooms entertainment rooms reading rooms shelters ante rooms refreshment rooms kitchens cloak rooms lavatories conveniences and appurtenances and may for any such purposes maintain alter adapt extend or otherwise deal with existing buildings for the time being belonging to the Corporation and may provide erect and maintain shops and offices as part of any such building or buildings.

Provision of entertainments and letting of Stephenson Memorial Hall or other buildings.

87.—(1) The Corporation may arrange for the provision or carrying on of suitable concerts entertainments exhibitions performances and amusements and for the sale of programmes and refreshments in the Stephenson Memorial Hall or in any public buildings halls or rooms belonging to them and may make such reasonable charges as they may think fit for admission thereto and the Corporation may let any such premises as aforesaid for the purposes of such concerts entertainments exhibitions performances or amusements or for the sale of refreshments for such periods or occasions and upon such terms and conditions as the Corporation may think fit or upon the like terms and

conditions they may lease any such premises for any term not exceeding twenty-one years: A.D. 1914.

Provided that any letting other than for a period of less than one month under this section of any building for the purpose of an entertainment shall be by tender and the Corporation shall secure the best rent reasonably obtainable.

(2) The Corporation may make byelaws for securing good and orderly conduct during any concerts entertainments exhibitions performances or amusements provided or carried on in pursuance of the provisions of this section.

88. The Corporation may from time to time let for terms not exceeding twelve months to any club company body or persons any portion of any park or place of public resort or recreation set apart by them for any purpose under paragraph (B) of subsection (1) of section 76 of the Public Health Acts Amendment Act 1907 and may upon such portions so set apart erect construct and maintain all proper and convenient houses pavilions dressing-rooms and other buildings works and conveniences. Power to let recreation grounds &c. to cricket clubs &c.

89. The Corporation may appropriate to and use for the purposes of a public recreation and pleasure ground under the Public Health Acts the lands delineated on sheet No. 25 of the deposited plans and which they are authorised by this Act to acquire and subject to the approval of the Local Government Board any other lands for the time being belonging to them. Use of lands for pleasure grounds.

90. Subject to the provisions of this Part of this Act the moneys received by the Corporation under this Part of this Act shall be carried to the credit of the district fund and the expenses incurred by them in exercising the powers contained in this Part of this Act may be paid out of the same fund. Receipts and expenses under this Part of Act.

PART X.

FINANCE.

91.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all money so borrowed within the respective periods each of which is referred to as “the prescribed Power to borrow.

A.D. 1914. — period" mentioned in the third column of the said table (namely):—

Purpose.	Amount.	Period for repayment.
(A) For the construction of the tramways by this Act authorised.	£ 8,000	Thirty years.
(B) For the equipment of the tramways by this Act authorised and for the general purposes of the tramway undertaking.	10,500	Twenty years.
(C) For the purchase of lands by this Act authorised to be acquired and for any costs charges and expenses in connection therewith.	100,000	Sixty years.
(D) For the works of street improvement by this Act authorised.	33,200	Forty years.
(E) For the extension and alteration of market house and market hall and for the purposes of the market undertaking.	3,000	Thirty years.
(F) For the extension of the cattle market and for the purposes of such market.	1,000	Thirty years.
(G) For payment of costs charges and expenses of this Act as hereinafter provided.	The sum requisite	Five years from the passing of this Act.

(2) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for tramway purposes:

Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Board of Trade.

(3) The Corporation may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act except the purposes mentioned in subsection (2) of this section:

Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Local Government Board.

(4) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge—

As regards moneys borrowed for the purposes (A) and (B) hereinbefore mentioned the revenue of the tramway undertaking and the borough fund and borough rate:

As regards moneys borrowed for the purposes (c) (D) and (F) hereinbefore mentioned the district fund and general district rate : A.D. 1914.

As regards moneys borrowed for the purposes (E) hereinbefore mentioned the revenue of the market undertaking and the borough fund and borough rate :

As regards moneys borrowed for the purpose (G) hereinbefore mentioned the borough fund and borough rate :

As regards moneys borrowed with the consent of the Board of Trade or of the Local Government Board the revenue of the tramway undertaking the revenue of the market undertaking and the borough fund and borough rate and the district fund and general district rate as shall be prescribed in the consent of such Board.

(5) In calculating the sum which the Corporation may borrow under any other enactment any sums which they may borrow for the purposes of this Act shall not be reckoned and the powers of the Corporation as to borrowing and re-borrowing under the powers of this Act shall not be restrained by the provisions of the Municipal Corporations Acts or of the Public Health Acts or of the Local Government Act 1888.

(6) Money borrowed under this section shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

92. The provisions contained in the following sections of the Acts of 1901 and 1904 shall (with the necessary modifications and subject to the provisions of this Act) extend and apply to the execution of the provisions of this Act as if they were re-enacted in this Act (that is to say):— Application of certain sections of Act of 1901 and of Act of 1904.

Of the Act of 1901—

Section 74 Mode of raising money ;

Section 75 Provisions of Public Health Act as to mortgages to apply ;

Section 77. Mode of payment off of money borrowed ;

Section 78 Sinking fund ;

Section 79 Protection of lender from inquiry ;

Section 80 Corporation not to regard trusts ;

Section 81 Power to re-borrow ;

Section 84 Expenses of execution of Act ;

Section 85 Accounts to be kept and audited.

A.D. 1914.

Of the Act of 1904—

Section 73 Return to Local Government Board as to repayment of debt;

Section 82 Inquiries by Local Government Board.

Rates may be amended to accord with poor rate and with new or supplementary valuation list.

93. The provisions of section 221 (Rates may be amended) of the Public Health Act 1875 shall extend to enable the Corporation to amend any rate made by them in pursuance of such Act so as to make the assessment to such rate accord with any entry in a current poor rate for any parish or township within the borough in pursuance of the provisions of section 38 of the Poor Law Amendment Act 1868 or with any new or supplementary valuation list for any such parish or township respectively made during the currency of such first-mentioned rate.

Subscriptions to local government associations and others.

94. The Corporation may pay out of the borough fund as expenses incurred by them under the Municipal Corporations Act 1882—

(1) Reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings:

(2) The reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

PART XI.

MISCELLANEOUS.

Application of certain sections of

95. The provisions contained in the following sections of the Acts of 1901 and 1904 shall apply for the purposes of the

exercise of the provisions of this Act as if they were re-enacted in this Act (that is to say):—

A.D. 1914.

Act of 1901
and Act of
1904.

Act of 1901—

Section 88 General provisions as to byelaws;

Section 89 Recovery of penalties;

Section 90 Information by whom to be laid;

Section 92 As to appeal;

Section 93 Judges &c. not disqualified.

Act of 1904—

Section 76 Consents of local and road authority;

Section 77 Orders &c. of Board of Trade.

96. All consents given by the Corporation under the provisions of this Act shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk.

Consent of
Corporation
to be in
writing.

97. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Effect of
breach of
conditions
attached to
consent.

98. The Corporation may convert any clinkers or other refuse or surplus material or product arising in connection with their refuse destructor or destructors into slabs of artificial stone bricks concrete mortar material for filtration or percolation purposes at sewage disposal works and other materials and may construct such buildings and works and may in connection therewith provide and erect such machinery plant and appliances as may be required and any such slabs bricks concrete mortar or other materials so produced may be utilised by the Corporation for making and repairing streets or for any other purposes connected with the work of the Corporation for which they may be suitable or may be sold by the Corporation who shall carry the proceeds arising from any sales thereof to the credit of the destructor account in the district fund.

Power to
convert
destructor
refuse into
slabs and
other
materials
and to use
and sell such
materials.

99. The Corporation may erect or fix street fire alarms in such positions in any street road or public place within the

Fire alarms.

A.D. 1914. borough as they think fit Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Compensation &c. how to be determined.

100. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts Provided that where any such compensation costs damages or expenses is or are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such compensation costs damages or expenses in case of dispute may be ascertained by the court before whom any offender is convicted.

Application of Arbitration Act 1889.

101. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be subject to the provisions of the Arbitration Act 1889.

Application of section 265 of Public Health Act 1875.

102. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein.

Evidence of appointments authority &c.

103. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the Corporation under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the Corporation or to prove any resolution or order of the Corporation or any resolution order or report of any committee of the Corporation a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

104.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be a sufficient authentication.

A.D. 1914.
—
Authentica-
tion and
service of
notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

105. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportion-
ment of
expenses in
case of joint
owners.

106. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

In executing
works for
owner Cor-
poration
liable for
negligence
only.

107. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings

Saving for
indictments
and other
proceedings.

A.D. 1914. or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Recovery of demands in county court.

108. Proceedings for the recovery of any demand made under the authority of this Act or of any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter Provided that the demand does not exceed the amount recoverable in that court in a personal action.

Powers of Act cumulative.

109. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

As to appropriation of lands acquired for education purposes.

110. Notwithstanding anything contained in this Act any lands vested in the Corporation for the purpose of the Education Acts 1870 to 1911 shall only be appropriated and used for non-educational purposes in accordance with the provisions of the Education (Administrative Provisions) Act 1909.

Crown rights.

111. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

112. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of money to be borrowed under this Act for that purpose and such costs shall include the costs incurred by the Corporation in complying with the provisions of the Borough Funds Act 1903 with respect to the Bill for this Act and all matters relating thereto.

SCHEDULES referred to in the foregoing Act. A.D. 1914.

FIRST SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY
MAY BE TAKEN.

Parish.	Numbers on deposited Plan.												
Chesterfield	1A	1B	40	52	53	67	68	70	71	72	128	130	132
	134	136	138	140	141	156	160	161	162	164	165		
	167	168	176	181	182	198	199	199A	200	201			
	202	203	204A	205	206	206B	207	208	208A	234			
	235	238	241	244	245	247	250	251	253	261			
	262	268	272	275	277	279	286	287	288	289			
	290	297	299	300	303	305	306	361	406	442			
	442A	442B	456	457	458	463A	493	513	514	514A			
	526	531	532	533	534	535	551	560	567	571			
	574	581	584	595	608	610	619	635	639	668			
	669	674	679	680	682	685	746	758	760	761			
	772	782	790	793	799	800	802	821	822	842			
	849	857											

SECOND SCHEDULE.

AREA OF SUPPLY OF ELECTRICAL UNDERTAKING.

The borough of Chesterfield ;
The urban district of Whittington and Newbold ;
The parish of Hasland in the rural district of Chesterfield ;
The urban district of Brampton and Walton ;
The parish of Tapton in the rural district of Chesterfield ;
as the same are respectively constituted at the time of the passing of
this Act which said borough districts and parishes are all situate in
the county of Derby.

A.D. 1914.

THIRD SCHEDULE.

MAXIMUM PRICES WHICH MAY BE CHARGED BY THE CORPORATION.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of such electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

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